

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX **X**

ROXANNE SALGADO

Plaintiff,

ECF
COMPLAINT

-Against-

**Plaintiff Designates Bronx
County as the Place of Trial.**

CITY OF NEW YORK, POLICE OFFICER
DEREK CLIFFORD, IN HIS INDIVIDUAL
AND OFFICIAL CAPACITY,
JOHN DOES 1-4, IN THEIR INDIVIDUAL,
AND OFFICIAL CAPACITY.

Index No.

Defendants.

X

Plaintiff, Roxanne Salgado, by her attorney, Welton K. Wisham of The Law office of Welton K. Wisham, alleges upon information, and belief, the following against Defendants, The City of New York, New York City Police Officers Derek Clifford, and John Does 1-4, as police officers of the City of New York, the following under penalty of perjury:

PRELIMINARY STATEMENT

1. This action arises out of Defendants’ role in the false arrest, false imprisonment, unreasonable and excessive use of force, and malicious prosecution, humiliation, degradation by the Defendants police officers against Plaintiff, Roxanne Salgado on or about April 15, 2016, at approximately 7:12 am inside Plaintiff’s residence located at 3214 Yates Avenue, Bronx, New York.

STATEMENT OF FACTS

2. That on or about April 15, 2016 , at approximately 7:12 a.m. the New York City Police Department’s Special Weapons and Tactics Team (SWAT) knocked on Plaintiff’s door and asked Mrs. “ please let us in”! “Please let us in”!

3. Ms. Salgado refused to allow the Defendant police officers to enter her home. "I'm saying no, you can't come in"!
4. Officer Clifford responded by stating "Please, I'm being nice"
5. Again Ms. Salgado told the officers "no, you can't come in"! "I'm saying no, I'm saying no"!
6. Defendant officer Clifford kept pleading for Salgado to open the door. "We'll fix your door and we'll leave, and I'm asking you please, I'll be nice"!
7. Officer Clifford was looking inside Plaintiff home through the door viewer which he had broken to look inside Plaintiff's home.
8. Upon information and belief, the Defendants officers did not have a search warrant to enter Plaintiff's residence.
9. Ms. Salgado was home with her two minor children, eleven and six years old.
10. The Defendant, Officer Derek Clifford, began to break holes through Ms. Salgado's door viewer with his police issued baton, and other instruments.
11. That Defendant officers Clifford, and approximately six other uniformed officers entered Salgado's home by breaking down her front door with a metal battering ram.
12. Officer Clifford, and the other six officers entered Salgado's home with armor shields and with their weapons drawn, without Plaintiff's consent.
13. Officer Clifford ordered Ms. Salgado to "get down on the floor"!
14. As Ms. Salgado attempted to comply with the officers' order however, Officer Derek Clifford with the assistance of other officers, threw Plaintiff to the ground and stepped on her head as she lay on the floor inside her home as Ms. Salgado's children looked on in horror.

15. Officer Clifford then handcuffed Ms. Salgado as she was lying on her stomach with his foot on Plaintiff's head.
16. Plaintiff was forcibly removed from her home by Officer Clifford and other unidentified police officers who dragged Ms. Salgado down several flights of stairs.
17. Ms. Salgado repeatedly asked the officers "why am I being arrested".
18. The Defendant officers ignored Ms. Salgado and refused to inform her of her rights and the reason for her arrest.
19. John Valentine was also inside the Plaintiff's residence and was immediately arrested for assault on a third party.
20. Ms. Salgado's children were removed from their residence and placed inside a police vehicle and driven to the 49th police precinct.
21. Ms. Salgado was forcibly dragged from her home in front of her minor children partially dressed in pants and brassiere and without shoes.
22. That Defendant, Police Officer Derek Clifford, refused to allow Ms. Salgado the decency to cover herself with a blouse before dragging her from her home and down several flights of stairs.
23. That Ms. Salgado was driven to the 49th precinct without shoes and partially dressed in pants and brassier and placed in a cell where she remained for hours.
24. That Plaintiff was booked, and photograph, and held without her consent by Officer Clifford.
25. That the Defendants knew, or should have known that Ms. Salgado had not been involved in criminal activity at the time of her arrest.
26. That Defendants had no lawful reason to arrest Ms. Salgado.

27. That Officer Clifford and the other unidentified police officers involved in Plaintiff's seizure from her home, arrested Roxanne Salgado without probable cause to have believed that Plaintiff engaged in criminal activity.
28. Ms. Salgado was the only female in the 49th precinct that had been placed in a cell.
29. That Plaintiff sustained significant and unwarranted emotional trauma due to the actions by the Defendant police officers.
30. Roxanne Salgado was subjected to physical and emotional pain, and suffering, stemming from the excessive and unreasonable forced inflicted upon her by Defendant police officer Derek Clifford and other Defendant police officers without legal cause or justification.
31. Officer Derek Clifford charged Roxanne Salgado with Obstructing Governmental Administration under N.Y. Penal Code Section 195.05.
32. Plaintiff Salgado was held against her will at the 49th police precinct located at 2121 Eastchester Road, Bronx, New York.
33. Salgado was held at the 49th precinct until 11:pm, approximately fifteen (15) hours when she was then taken to central booking located at 215 East 161st Street, Bronx, New York.
34. Ms. Salgado complained repeatedly to Officer Clifford that the handcuffs were hurting her and that the handcuffs were too tight.
35. Plaintiff begged the officers "please loosen the cuffs, their too tight"!
36. The officers ignored Salgado's pleas.
37. The handcuffs left visible marks on Ms. Salgado's wrists for two weeks.
38. Ms. Salgado remained in police custody for approximately two days before she was released on her own recognizance.

39. Plaintiff was forced to appear three times in court to defend against the charge of Obstructing Governmental Administration.

40. On January 6, 2017, after a period of approximately ten months, the Honorable Criminal Court Judge M. Rosado dismissed the charge against Plaintiff Salgado.

JURISDICTION AND VENUE

41. This Court has personal jurisdiction over the defendants because the defendants committed the tortuous acts inside the borough of the Bronx and within the State of New York causing injury to the Plaintiff. This Court also has concurrent jurisdiction over Plaintiff's civil rights causes of action based on 42 U. S. C. Section 1983.

PARTIES

42. Plaintiff Roxanne Salgado was a resident of the State of New York at the time of the incident complained of.

43. That at the time of her arrest Ms. Salgado was gainfully employed as a Quality Assurance Nurse.

44. Ms. Salgado was forced to miss four days from work due to her unlawful arrest on April 15, 2016.

45. Roxanne Salgado holds a Bachelor of Science Degree in Nursing from the College of New Rochelle.

46. Ms. Salgado also holds dual Master Degrees from the University of Phoenix for Masters in Business. (MBA)

47. Salgado is licensed as a Registered Nurse in the State of New York.

48. Ms. Salgado's minor children were forced to miss school due to Plaintiff's arrest.

49. Plaintiff held a second job as a Case Manager where she provided professional services to patients by making ongoing assessments and providing clinical treatment to various patients prior to her arrest.

50. Ms. Salgado was unable to continue to work her second job as a Case Manager due to the ongoing criminal charges of eight months which were brought by Defendant Police Officer Derek Clifford.

51. Plaintiff lost substantial amount of income from her second job due to the false arrest by the Defendant police officers.

52. The loss of income had a substantial impact on Salgado's ability to care for her children.

53. That Roxanne Salgado was forced to drop out of school prior to obtaining her degree due to the loss of income.

54. Salgado was forced to miss classes at the University of Phoenix because she was incarcerated by the Defendants during the weekend that her classes were being held.

55. Ms. Salgado sought professional counseling for the emotional injuries she sustained due to her unlawful arrest and the pain and trauma she was forced to endure from the physical and mental treatment directed on her by Officer Clifford and the other unidentified Defendant Police Officers.

56. That at all times relevant herein, Defendant Police Officers Derek Clifford, and John Does 1-4, were duly appointed, and acting as employees of the New York City Police Department assigned to the 49th police precinct.

57. That the individual police officers involved in the incident underlying this lawsuit were at all times mentioned in this complaint, agents, servants, and employees, acting within the scope of their employment by Defendant City of New York, and were duly appointed police officers in the New York City Police Department acting within their individual, and official capacity, and under

color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

58. That the Defendant, City of New York, is a municipal corporation within the State of New York.

59. Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

60. That at all times relevant hereto, the City of New York employed the defendant Police Officers involved in this incident.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF, ROXANNE SALGADO AGAINST DEFENDANT DEREK
CLIFFORD FOR FALSE ARREST AND FALSE IMPRISONMENT PURSUANT TO 42.
U. S.C. SECTION 1983**

61. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 60", with the same force and effect as though more fully set forth at length herein.

62. That at all time herein mentioned and upon information, and belief, the Defendant Police Officers Derek Clifford, and John Does 1-4 were, and still are, members of the New York City police officer assigned to the 49th police precinct in Bronx, New York.

63. That at all time herein mentioned the defendant, City of New York, maintained, operated and controlled the New York City Police Department within the City of New York.

64. That at all time hereinafter mentioned the City of New York, employed police officers in its police force.

65. That at all times hereinafter mentioned the police officers employed by the Defendant City of New York, were servants, agents, and/or employees of the Defendant City of New York, and were acting within the scope of their employment.

66. That on or about April 15, 2016, at approximately 7:12 a.m., Plaintiff, Roxanne Salgado was at home preparing to go to work and preparing to take her children to school when she heard a loud knock on her front door.

67. Officer Derek Clifford and six other SWAT Team members were banging on her front door threatening to break down her door if she did not open the door for the officers.

68. Officer Clifford and the remaining members of the SWAT Team members broke into Ms. Salgado's apartment without her consent and without a warrant by pounding Salgado's front door with a battering ram.

69. Defendants police officers, Derek Clifford, and the other unidentified police officers entered Plaintiff's home with their police issued revolvers pointed directly towards Ms. Salgado causing the Plaintiff to fear for her life as Salgado's children look on in fear.

70. That the defendants, their agents, servants, and/or employees, intentionally, and without legal justification, unlawfully, and unreasonably, arrested, searched, imprisoned, detained, restrained, and, incarcerated and held Ms. Salgado for two days in a jail cell in the Bronx, New York.

71. That at all time herein mentioned, and based upon information and belief, plaintiff Roxanne Salgado was detained, and incarcerated by the individuals named defendants and the New York City Police Department for approximately forty eight hours without probable cause, legal justification, or consent of the Plaintiff.

72. That at all times herein mentioned, the plaintiff, was falsely arrested, imprisoned, detained, restrained, incarcerated, and badgered by defendant police officers Derek Clifford, and John Does 1-4, who were members of the New York City Police Department of the City of New York, who were agents, servants and/or employees of the defendant, City of New York, and who were acting

under and within the scope of their employment and under color of law at the time of the incident complained of herein.

73. That at all times herein mentioned, the Defendants intended to confine Ms. Salgado without privilege and without probable cause..

74. The plaintiff was conscious of the confinement and did not consent to her confinement.

75. That during Plaintiff's unlawful, and wrongful incarceration, Ms. Salgado was forcibly handcuffed, searched, assaulted, and subjected to humiliation and personal degradation, abuse, emotional distress, trauma, embarrassment, ridicule, and scorn, by Defendant Derek Clifford and the other SWAT Team members because Ms. Salgado refused to open the door to her home to the police.

76. Officer Clifford and the unidentified Defendants pointed their weapons towards Ms. Salgado without legal justification.

77. That Defendants violated Ms. Salgado's Fourth Amendment right under the Constitution of the United States which guarantees her right to be secure in her persons, houses, papers and effects, against unreasonable searches and seizure.

78. That the officer Clifford and the other unidentified Defendants, as agents, servants and, or employees of the New York City Police Department, intentionally, and without legal justification, including lack of probable cause, unlawfully, and unreasonably seized Ms. Roxanne Salgado from her home during the Defendants' raid and unlawful entry into Salgado's residence.

79. That as a result of the false imprisonment, arrest, detention, and incarceration, by Police officer Derek Clifford, and the unidentified Defendants, Ms. Salgado was caused to suffer severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn and deprivation of her civil rights, and freedom, under the Constitution of the United States.

80. That Plaintiff's arrest, imprisonment, detention, incarceration, and prosecution by the Defendant police officers constituted a malicious, wanton, and reckless act and degradation of the plaintiff's liberty.

81. That this action is brought pursuant to 42. U.S.C. Section 1983, which recognizes Ms. Salgado's right to seek legal redress and compensation for the Constitutional violations committed by the Defendants.

82. That as a direct, and proximate result of the acts, and omissions of the defendants herein described, the plaintiff was caused to suffer great physical pain and agony, and was caused great emotional pain, anguish and suffering and harm.

83. That in the manner describes herein, the defendants acted carelessly and recklessly with total disregard of the plaintiff's rights.

84. That the defendants knew, or should have known that their actions would or probably would inflict extreme emotional distress upon the plaintiff.

85. That the Plaintiff was intentionally confined without privilege or probable cause and that the defendants could not have reasonably believed that plaintiff had committed a crime.

86. That at all times mentioned herein, Plaintiff was aware of and did not consent to the confinement. Plaintiff was thereby falsely imprisoned.

87. That by reason of the foregoing Ms. Salgado has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANT POLICE
OFFICERS DEREK CLIFFORD AND JOHN DOES 1-4, FOR VIOLATING
PLAINTIFF'S RIGHT TO BE FREE FROM UNREASONABLE USE OF FORCE,
UNDER THE FOURTH AND FOURTEENTH AMENDMENTS TO THE UNITED
STATES CONSTITUTION**

88. That Plaintiff repeats, reiterates and realleges each and every allegations contained in

Paragraphs “1 through “87,” with the same force and effect as though more fully set forth at length herein.

89. Ms. Salgado was arrested without a warrant and without probable cause by the Defendants Derek Clifford, and the unidentified SWAT Team members.

90. Ms. Salgado was thrown to the ground by Officer Derek Clifford who the put his foot on Ms. Salgado’s head while she was lying helpless on her living room floor.

91. Derek Clifford with the assistance of other police officers dragged Ms. Salgado down three flights of stairs from her home and threw her into their police vehicle.

92. That officer Clifford arrested Ms. Salgado who was partially dressed in pants and brassier and without shoes.

93. Officer Clifford handcuffed Ms. Salgado as she was lying on the floor as Salgado’s children watched their mother cry out in agony.

94. Ms. Salgado complained to Officer Clifford that the handcuffs were on too tight causing her pain and discomfort which left visible marks on Plaintiff’s wrists for three weeks.

95. Officer Clifford refused to loosen the handcuffs.

96. The use of force inflicted upon Plaintiff by Defendant Derek Clifford and John Does 1-4 was committed by the officers in wanton disregard to Plaintiff’s right to be free from unreasonable use of force and without reason, or legal justification.

97. Plaintiff was not engaged nor had she been engaged in any criminal activity at the time the officers entered her home and forced her to the ground which resulted in her arrest and incarceration.

98. That Plaintiff Roxanne Salgado posed no a danger or threat to the Defendant officers.

99. In the manner described herein, the defendants acted with reckless disregard of the plaintiff's constitutional rights.

100. As a direct and proximate result of the acts of Officer Derek Clifford and the unidentified police officers, the Plaintiff was incarcerated for approximately forty eight hours.

101. Plaintiff was deprived of her rights and immunities secured under the Constitution and laws of the United States, and the State of New York including but not limited to her rights under the Fourth, and Fourteenth Amendment to the Constitution of the United States.

102. Defendants have employed a gross abuse of power, unfair procedures, and gross disparate treatment in their treatment of Ms. Salgado due to her race as an African American in violation of the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.

103. Defendant police officers, acting in their individual, and official capacity, and under color of law, conspired together and with others, and reached a mutual understanding to undertake a course of conduct that violated plaintiff's equal protection of the law, and the privileges, and immunities thereof.

104. As a direct and proximate result of the conspiracy between defendant police officers, plaintiff was unreasonably searched, seized, threatened and imprisoned, and physically injured in violation of plaintiff's rights under the Fourth, and Fourteenth Amendments to the Constitution of the United States.

105. The force used in arresting the plaintiff was excessive, unnecessary and unreasonable.

106. As a consequence thereof, Plaintiff Salgado has been greatly injured.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ROXANNE SALGADO AGAINST DEFENDANT
POLICE OFFICER DEREK CLIFFORD FOR MALICIOUS PROSECUTION UNDER
42 U.S.C SECTION 1983.**

107. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “106”, with the same force and effect, as though more fully set forth at length herein.

108. That the Defendant Police officer Derek Clifford, was acting within the scope of his employment and under color of law who falsely, and maliciously arrested and commenced prosecution against Roxanne Salgado without probable cause.

109. That officer Derek Clifford charged Ms. Salgado with Obstructing Governmental Administration and continued the unlawful prosecution against plaintiff knowing that plaintiff had not been engaged in any form of unlawful activity.

110. That officer Clifford charged Salgado with Obstructing Governmental Administration out of frustration, disgust, and with an evil intent, and malice , all because Plaintiff refused to open her door as requested by officer Clifford.

111. That Officer Clifford’s arrest and detention and subsequent filing of the charge of Obstructing of Governmental Administration against Salgado was done in retaliation of Ms. Salgado invoking her constitutional right to refuse entry of police officers in her home.

112. The officer Clifford, without probable cause confined the Plaintiff for two days and commenced prosecution against Salgado knowing that the Plaintiff had not committed a crime.

113.. That all the charges against the plaintiff were terminated in favor of the plaintiff.

114. That by reason of the foregoing, the Plaintiff has been injured and has suffered great emotional, and mental distress, and has been greatly injured, and sustained damages in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
ROXANNE SALGADO AGAINST DEFENDANT, CITY OF NEW YORK FOR
RESPONDEAT SUPERIOR.**

115. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “114”, with the same force and effect as though more fully set forth at length herein.

116. That the City of New York hired and supervised Defendant Derek Clifford and the other unidentified members of the SWAT Team who entered Plaintiff’s home without a warrant and seized the Plaintiff in front of her minor children without probable cause.

117. That officer Clifford used unnecessary and unreasonable force on Plaintiff Salgado by throwing Salgado to the ground and by placing his foot on her head because she refused to open the door.

118. That Clifford committed the wrongs stated herein including arresting Plaintiff in retaliation for refusing to open the door to the SWAT Team members and arrested Plaintiff without probable cause, all done while acting within the scope of his duties as an employee of the City of New York and the New York City Police Department.

119. Officer Clifford is believed to have outranked other individual Defendants who participated in the unlawful acts stated herein against Plaintiff Salgado.

120. Officer Derek Clifford had supervisory authority over those officers that he outranked.

121. As a result, the City of New is liable for the unlawful acts of their employee and subordinates, under respondeat superior.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF ROXANNE
SALGADO AGAINST THE CITY OF NEW YORK UNDER 42 U.S.C. SECTION 1983,
FOR FAILURE TO TRAIN, SUPERVISE OR DISCIPLINE POLICE OFFICER
DEREK CLIFFORD AND THE UNIDENTIFIED DEFENDANT POLICE OFFICERS.**

122. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered”1 through “121”, with the same force and effect as though more fully set forth at length herein

123. That at all relevant times herein, Defendant City of New York, acting through its New York City Police Department developed, maintained, implemented, enforced, encouraged, and sanctioned de facto policies, practices and or customs exhibiting deliberate indifference to the Plaintiff’s constitutional rights which caused the violation of such rights.

124. The Defendants unlawful actions were done willfully, knowingly and with the specific intent to deprive Plaintiff of her constitutional rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

125. That the acts, omissions, and practices alleged herein constitute a pattern or practice of conduct that violates the rights privileges and immunities of the Plaintiff which are secured or protected by the Constitution of the United States.

126. That the New York City Police Department’s conduct amounted to a policy of deliberate indifference to Plaintiff’s constitutional rights to be free from unlawful search, and seizure inside Plaintiff’s residence without a warrant.

127. That the law recognizes several ways in which a municipal policy can be set by a municipality to cause it to be liable under section 1983. 1) the explicit setting of a policy by the government that violates the Constitution, 2) the action of a policy makers within the government, 3) the adoption through a knowing failure to act by a policy maker of actions by his subordinates that are so

consistent that they have become custom or 4) the failure of the government to respond to an obvious need for better training of its employees in such a manner as to show “deliberate indifference “to the risk that not addressing the need will result in constitutional violations.

128. That the Defendants knew or should have known of the deficiencies alleged herein and that the New York City Police Department’s failure to supervise and train Defendant Derek Clifford amounts to deliberate indifference to the Plaintiff’s Constitutional rights protected under the Fourth, and Fourteenth Amendments.

129. The Defendants had a duty to conduct a reasonable investigation of the fact that Salgado had a legal right to refuse entry inside her home to police officers and that she should not have been arrested and charged with Obstructing Governmental Administration .

130. That the Defendants’ deliberate indifference caused the violations of Ms. Salgado’s Constitutional rights alleged herein.

131. The acts and omissions set forth herein were carried out by the aforementioned individual Defendants, and subordinates in their individual and official capacity as police officers of the New York City Police Department pursuant to the customs, policies and practices, within the New York City Police Department under the supervision of Commissioner James P. O’Neil under color of state law.

132. That the failure to supervise train and or discipline the Defendant officers resulted in a custom, policy or practice that served as the moving force behind the constitutional violations suffered by Plaintiff Salgado..

133. That the policy makers within the City of New York and the New York City Police Department including commissioner James O’Neil, knew or should have known that the policies in

effect during the time of the Plaintiff's unlawful search and seizure were being ignored, and that the Defendants were deliberately indifferent to Ms. Salgado's constitutional rights.

134. The policy makers within the New York City Police Department had constructive knowledge of the foreseeable injuries to the plaintiff as set forth above and failed to do anything about it.

135. Plaintiff's right to be free from arbitrary government actions including the right to be free from unreasonable search and seizure and use of force which caused Plaintiff's injuries without legal justification, was clearly established on April 15, 2016.

136. That the constitutional abuses, and violations by the City of New York through the actions of the Defendant officers and employees, were directly and proximately caused by policies, practices and customs developed, implemented, enforced, encouraged, and sanctioned by the Defendant, City of New York.

137. Defendants' unlawful actions were done willfully, knowingly and with the specific intent to deprive Plaintiff of her constitutional rights.

138. That officer Derek Clifford and the unidentified police officers were negligently hired, trained, supervised, disciplined, and retained by the defendant, City of New York.

139. That the acts complained of herein resulted from the Defendants City of New York, and the New York City Police Department, through their agents, servants and employees, breaching its duty to properly assign, train, supervise, discipline and retained its employees within the New York City Police Department.

140. That the City of New York failed to train, supervise, or discipline the municipal Defendants named herein who unlawfully held, detained, and incarcerated Plaintiff without probable cause or legal justification.

141. That the defendant City of New York's failure to properly assign, train, supervise or discipline its Police Department employees including the named Defendants involved in this incident herein, constituted a practice of acquiescence, and a tolerance of ongoing unconstitutional detentions, and seizures, which allowed the defendants to believe that they could violate plaintiffs' constitutional rights with impunity.

142. By reason of the foregoing, the individual defendants individually, and through defendant's agents, servants and employees, failed, and refused to use such care in the performance of their duties as a reasonably prudent police officer would have used under similar circumstances, thus resulting in significant emotional injuries to the plaintiff including her loss of liberty and permanent emotional distress.

143. That the City of New York should be held liable for the underlying constitutional violations committed by non-policy makers employees due to the fact that the City's policies and customs of inaction are objectively deliberately indifferent to the likelihood that a constitutional violation would occur.

144. That there was an obvious need for additional training and supervision which the City was aware of and failed to provide.

145. That by the conduct of the Defendants, as described herein, the City of New York is liable to the Plaintiff under 42 U.S.C. Section 1983 for the violations, under color of state law for violating Plaintiff's right to be free from deprivation of liberty without due process of law under the Fourteenth Amendment to the United States Constitution.

146. That the failure of the City of New York, and the New York City Police Department and Commissioner James O'Neil to adequately train, supervise or discipline or in any other way control the behavior of the municipal defendants identified herein in the exercise of their official functions,

and their failure to enforce the laws of the State of New York, and the regulations of the City of New York Police Department is evidence of the reckless lack of cautious disregard for the rights of Rozanne Salgado.

147. That the need for more or better supervision, or training to protect against the constitutional violation was patently obvious which the City of New York failed to provide.

148. As consequence thereof, Plaintiff has been greatly injured.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST THE DEFENDANT'S FOR FAILURE TO INTERVENE TO PREVENT THE
VIOLATION OF PLAINTIFFS' CIVIL RIGHTS.**

149. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs numbered "1 through 148", with the same force and effect as though more fully set forth at length herein.

150. That Defendant police officer Derek Clifford upon information and belief was the Commanding officer who supervised the defendant officers that entered plaintiffs' residence without a valid search warrant and without consent of the plaintiff.

151. That the unidentified SWAT Team members failed to intervene to prevent the constitutional violations or to remedy the wrongful action of Officer Derek Clifford.

152. That the Defendant officers were grossly negligent in the supervision of the officers that participated in dragging Plaintiff down the stairs and by breaking down Salgado's door without a warrant.

153. That the defendant officers had an opportunity to prevent the abuse suffered by the Plaintiffs and failed to do so.

154. That the defendant Commanding officer was deliberately indifferent to the Plaintiffs' constitutional rights.

155. That the defendant officers were all operating under the direction and control of their Commanding officer, Derek Clifford.

156. That as a direct, and proximate result of the acts, and omissions of the defendants herein described, the plaintiff was caused to suffer great physical pain and agony, and was caused great emotional pain, anguish and suffering and harm.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF AGAINST THE CITY OF NEW YORK AND DEFENDANTS DEREK
CLIFFORD AND JOHN DOES 1-4 , PURSUANT TO 42 U.S.C SECTION 1983,
FOR VIOLATING PLAINTIFF'S RIGHTS UNDER THE DUE PROCESS CLAUSE
OF THE FOURTEENTH AMENDMENT TO THE CONSTITUTION OF THE
UNITED STATES**

157. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through 156", with the same force and effect as though more fully set forth at length here herein.

158. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of plaintiffs' right to free from the deprivation of liberty without due process of law.

159. That Officer Derek Clifford arrest, detainment, and use of force was punishment for Salgado's refusal to open the door to her residence

160. That the filing of charges against the Plaintiff by officer Clifford who knowingly made false accusations against Ms. Salgado in violation of her right to due process of law.

161. As direct and proximate result of the defendant officers' conduct, Ms. Salgado was greatly humiliated, embarrassed, and injured, and has been caused to suffer great pain, suffering, and mental anguish.

**AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST THE DEFENDANTS
FOR CONSPIRACY TO VIOLATE PLAINTIFF'S CONSTITUTIONAL RIGHTS
UNDER 42 U.S. C. SECTION 1983**

162. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “161” with the same force and effect as though more fully set forth at length herein.

163. That the individual Defendants by their conduct did under color of law, conspire with one another to deprive Ms. Salgado of her constitutional rights, including her right of privacy and her right to be from unreasonable search and seizure and unreasonable force, false arrest and false imprisonment.

164. That in furtherance of this conspiracy to cover up the Defendants' illegal arrest of the Plaintiff, the Defendants engaged in filing a false narrative of the events which occurred on April 15 2016, in that the Defendants willfully and intentionally created a misleading and incomplete and inaccurate police report of the incident mentioned herein which led to Plaintiff's arrest inside her residence.

165. The Defendants' willfully and intentionally failed to mention in their police reports filed with the New York City Police Department that the Defendants forced their way into Mr. Rattray's apartment and arrested her because she failed to comply with their repeated request to open the door to her residence..

166. The Defendant officers failed to mention in their police reports that Ms. Salgado repeatedly informed the officers that she would not open the door to her home and that the officers entered Plaintiff's home without consent.

167. The officers also failed to disclose the fact that officer Clifford forced Plaintiff to the ground and placed his foot on Plaintiff's head and dragged her down three flights of stairs all while Plaintiff's minor children looked on in horror.

168. That the officers knowingly gave false statements to NYPD investigators and circulated false and defamatory information concerning Ms. Salgado in an attempt to diminish Ms. Salgado's credibility and future testimony.

169. That as a proximate and direct result of Defendant's' conduct Ms. Salgado has been caused to suffer severe emotional and physical injuries as more fully set forth herein.

WHEREFORE, Plaintiff request that the Court grant the following relief jointly and severally the Defendants:

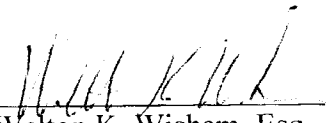
A. Compensatory damages in the amount of \$ 1,500,000, for Plaintiff's unlawful incarceration, and restraint of liberty as well as the pain, suffering and psychological injuries sustained by Ms. Salgado as a result of the events alleged herein.

B. Punitive damages against Police Officer Derek Clifford in the amount of \$ 500,000.

C. An order awarding Plaintiff reasonable attorneys' fees under 42.U.S.C Section 1988, together with the costs of this action.

D. Such other and further relief as the Court may deem just and proper.

Dated: June 19, 2018
New York, New York

By 
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